

2.5.4 Stay of appeal proceedings following a referral

It follows from Art. 112(3) EPC that the proceedings before the referring board are stayed until the Enlarged Board gives its decision. Proceedings before other boards of appeal may also be stayed.

In T 426/00 of 27 June 2003, the board had to answer questions that were identical to the questions raised in a referral pending before the Enlarged Board (concerning Art. 123(2) EPC, disclaimers). The board raised the purpose of ensuring a uniform application of the law under Art. 112 EPC and the need to comply with the spirit of Art. 16 RPBA 1980 (Art. 21 RPBA 2020; see in this chapter V.B.2.3.6). In order not to anticipate the Enlarged Board's evaluation of the questions before it, the board suspended the appeal proceedings.

In T 1875/07, the board acknowledged the patentability of the invention under Art. 52(2) EPC but did not consider the claimed subject-matter to be inventive. A referral on Art. 52(2) EPC was pending before the Enlarged Board. According to the board, the legal basis on which an application is refused determines only the reasons for the decision, but not the decision itself. Since the decision in the appeal proceedings did not depend entirely on the outcome of the referral, the board refused the request to suspend the appeal proceedings (see also T 787/06, T 1044/07 and T 1961/09).

3. Petition for review under Article 112a EPC

3.1. General

Art. 112a EPC was introduced with the EPC 2000, following a suggestion of the Enlarged Board of Appeal (G 1/97; OJ 2000, 322). Its purpose is not to make the Enlarged Board of Appeal a third instance (R 5/16; second judicial instance) but to provide for a limited judicial review of decisions of the boards of appeal. The grounds on which a petition for review can be based have been exhaustively defined by the legislator. These are, firstly, fundamental procedural defects which occurred in appeal proceedings and, secondly, the existence of a criminal act which may have had an impact on a decision (Art. 112a(2) EPC).

Art. 112a EPC expands on the right to a fair trial guaranteed by Art. 6 EHRC (R 9/14). The examples in Art. 112a(2)(a) to (c) EPC and particularly the wording of Art. 112a(2)(d) EPC make it clear that only fundamental (but not minor) procedural defects can be the basis for a petition for review (explanatory remarks in OJ SE 4/2007, 126; see also R 8/14). Review proceedings are confined to procedural defects so fundamental as to be intolerable for the legal system and overriding the principle that proceedings which have led to a final decision should not be re-opened in the interest of legal certainty (R 16/12, R 8/16). Art. 112a EPC provides an "exceptional means of redress" (R 1/08, R 2/12 of 17 October 2012, R 5/14, R 18/11, R 3/14; see also R 9/14), an "extraordinary legal remedy" (travaux préparatoires, MR/21/00; see also R 1/08, R 20/10, R 1/11, R 3/11), the provisions of which have to be applied strictly (R 1/08, R 23/10). A petition for review has no suspensive effect (Art. 112a(3) EPC).

From 13 December 2007 (the entry into force of Art. 112a EPC) to 31 March 2022, 169 decisions of the Enlarged Board on petitions for review (petitions withdrawn or deemed not to have been filed excluded) have been published on the Internet. In nine cases (R 7/09, R 3/10, R 15/11, R 21/11, R 16/13, R 2/14 of 22 April 2016, R 3/15, R 4/17 and R 5/19) the decision under review was set aside and the appeal proceedings re-opened; the remaining petitions were rejected.

3.2. Transitional provisions

The decision of the Administrative Council of 28 June 2001 on the transitional provisions under Art. 7 of the Act revising the EPC of 29 November 2000 provides that "Article 112a EPC shall apply to decisions of the Boards of Appeal taken as from the date of its entry into force" (see R 2/08). Referring to G 12/91 (OJ 1994, 285), the Enlarged Board in R 5/08 interpreted "taken" to be the date a decision given orally is pronounced, not the date of notification. A petition based on a decision dated prior to, yet not notified to the parties until after entry into force of the EPC 2000, is therefore inadmissible.

3.3. Article 112a(1) EPC – adversely affected party entitled to file a petition for review

Under Art. 112a(1) EPC, any party **adversely affected by the decision** of a board may file a petition for review.

In the case underlying R 1/11, the patent had been transferred and the transferee had filed an appeal against the decision of the opposition division to revoke the patent. The transfer of the patent had, however, not been registered in line with R 22 EPC before the expiry of the period for filing the notice of appeal. Therefore, the decision under review had rejected the transferee's appeal as inadmissible. The transferor's appeal, filed after the expiry of the period for filing a notice of appeal, had also been considered inadmissible. Both the transferee and the transferor filed a petition for review. The Enlarged Board held that the requirement of Art. 112a(1) EPC that the petitioner be adversely affected for a petition to be admissible was fulfilled with respect to the transferee, irrespectively of its party status before the board of appeal, since the adverse effect resulted from the refusal to acknowledge that it had the status of appellant (his petition was, however, considered clearly unallowable in the end). The transferor's petition, on the other hand, was considered clearly inadmissible because, not being the current proprietor, the transferor was not adversely affected by the impugned decision.

In R 4/18 the Enlarged Board held that **minutes were not considered to be a decision**. It did not see how the use of the word "conclusion" instead of "preliminary view" in the context of the minutes of an oral proceeding could transform those minutes into a decision, noting that the appeal proceedings had been terminated by the appellant's (petitioner in the case in hand) withdrawal of the appeal in the proceedings under review. The Enlarged Board noted that it was the common practice of the boards to express views or conclusions on the substantive issues before them during the course of the oral proceedings. A decision on the case is then made at the end of the oral proceedings. See also chapter V.A.2.2. "Appealable decisions".

3.4. Scope of review by the Enlarged Board of Appeal

3.4.1 Article 112a(2) EPC – grounds for a petition for review

A petition for review may only be filed on the grounds listed in Art. 112a(2) EPC. Those defined in Art. 112a(2)(a) to (c) EPC concern a breach of Art. 24 EPC governing exclusion of and objection to members of a board of appeal; the participation of persons not appointed as a member of the boards of appeal; and the fundamental violation of Art. 113 EPC. In addition, Art. 112a(2)(d) EPC opens up the possibility of using the Implementing Regulations to define further fundamental procedural defects on which a petition for review might be based (explanatory remarks in OJ SE 4/2007, 126). Under R. 104 EPC, such a defect may arise from either a failure to arrange for the holding of oral proceedings requested by a party (R. 104(a) EPC), or a failure to decide on a request relevant for the board's decision (R. 104(b) EPC). Finally, a petition for review may also be filed on the ground that a criminal act may have had an impact on the decision (Art. 112a(2)(e) EPC).

3.4.2 Grounds listed exhaustively

The grounds for a petition for review have been exhaustively defined by the legislator, namely in Art. 112a(2) EPC in conjunction with R. 104 EPC (R 1/08; see also R 10/09, R 14/09, R 16/09, R 17/09, R 18/09, R 20/09, R 20/10, R 6/11, R 13/11, R 19/11, R 20/11, R 2/12, of 17 October 2012, R 18/12, R 4/13, R 5/13, R 5/14, R 7/14, R 9/14, R 6/15, R 3/16). What is not defined by the Implementing Regulations does not qualify as a procedural defect under Art. 112a(2)(d) EPC (R 16/09).

The erroneous application of a procedural rule, which does not in itself belong to the grounds for review enumerated in the EPC, can only be considered if it results in one of the procedural defects listed in Art. 112a(2) EPC in conjunction with R. 104 EPC (R 2/08, R 20/10, R 18/12). In R 8/16 the Enlarged Board noted that Art. 125 EPC expressly states that it is only applicable in the absence of procedural provisions in the EPC and held that for this reason it could not be the basis for extending the scope of Art. 112a EPC.

In particular, the following issues cannot be considered in review proceedings:

- allegedly insufficient reasoning (R 6/11; see also R 1/08, R 19/11, R 5/13, R 1/15, R 8/15, R 7/16), unless this involves a fundamental violation of Art. 113 EPC
- the alleged violation of Art. 114 EPC in conjunction with R. 116(1) and (2) EPC or, respectively, R. 101 and 99(2) EPC (R 14/09)
- the refusal to allow the recording of oral proceedings, the use of a different (but equivalent) terminology than the one used in the EPC during the oral proceedings or the non-validation of the minutes at the end of the oral proceedings (R 17/09)

- the alleged inadequate keeping of minutes, the alleged incompetence to decide on the exclusion from file inspection or the alleged misunderstanding of a party submission (R 20/09, R 7/17)
- the alleged violation of Art. 6 ECHR (R 1/16, R 18/09), unless this involves a fundamental violation of Art. 113 EPC (see G 3/08, OJ 2011, 10, as to the general applicability of fundamental procedural rights in EPO proceedings)
- the alleged violation of the principle of legitimate expectations (R 13/11, R 1/16)
- the allegedly incorrect reversal of the burden of proof (R 21/10)
- alleged irrationality or "Wednesbury unreasonableness" (R 19/11)
- allegedly insufficient time allowed for the oral proceedings (R 2/12)
- the alleged violation of the right to be heard in respect of another party (R 5/14)
- the alleged lack of technical understanding of a board member, so that the board did not consist of two "technically qualified members" as required by Art. 21(4)(a) EPC (R 3/12)
- the alleged violation of Art. 4(3) EPC, or of Art. 11, 15(4) and 20 RPBA 2007 (R 9/14)
- the alleged violation of Art. 15(5) and 15(6) RPBA 2007, unless this involves a fundamental violation of Art. 113 EPC or a fundamental procedural defect under Art. 112a(2)(d) EPC in combination with R. 104(b) EPC (R 7/14; see also R 10/08)
- the alleged violation of Art. 20(1) RPBA 2007 (R 7/13)
- the alleged violation of Art. 114 EPC, of Art. 13 RPBA 2007, or the alleged lack of impartiality (R 10/14)
- the alleged violation of the principle of procedural economy (R 1/16).
- an alleged misapplication of a provision of the RPBA 2007, unless it can be shown that it resulted in a fundamental procedural violation within the meaning of Art. 112a(2) EPC (R 3/17).

As R. 106 EPC implies, only procedural defects actually attributable to a board of appeal can be reviewed under Art. 112a EPC. Procedural defects that occurred in first instance proceedings may not be the subject of a petition for review (R 20/10, R 8/11; see also R 19/12 of 12 April 2016, R 3/16).

3.4.3 No suspensory effect – review of substantive law excluded

Art. 112a(3) EPC makes it clear that the petition for review is an extraordinary legal remedy the filing of which does not affect the force of res judicata of the decision under attack. Implicitly it follows that a successful petition for review results in a decision of the Enlarged Board of Appeal which sets aside the decision of the board of appeal, i.e. overturns its res judicata effect, and re-opens appeal proceedings (explanatory remarks in OJ SE 4/2007, 128). Decisions of the boards of appeal must remain final decisions (see also R 1/08).

Under no circumstances may the petition for review be a means to review the application of substantive law. This restriction is justified because the function of the petition for review is to remedy intolerable deficiencies occurring in individual appeal proceedings, not to further the development of EPO procedural practice or to ensure the uniform application of the law (explanatory remarks in OJ SE 4/2007, p. 126; R 13/10: established case law since R 1/08). The Enlarged Board has no competence under Art. 112a EPC to examine the merits of the decision and to go into the substance of a case (R 4/09, R 13/10, R 5/15, R 7/17), not even indirectly (R 19/11, R 6/13, R 3/18). A review of the correct application of substantive law would amount to the Enlarged Board being a third instance which has been explicitly excluded (R 3/09; see also R 13/09, R 3/18). It is not the purpose of petition for review proceedings to evaluate whether or not the reasons selected by the board are appropriate (R 13/14, R 2/18); the Enlarged Board cannot replace a board's substantive assessment with its own (R 9/14). The Enlarged Board cannot act as a third instance or second-tier appellate tribunal in petition proceedings (R 9/10, R 11/11, R 5/13; see also R 1/08, R 3/09, R 13/09, R 3/18).

Not being competent to decide on the merits of a case necessarily implies that the Enlarged Board has no power to control the normal exercise a board makes of its discretion (R 10/09, see also R 6/17). The exercise of discretion is only subject to review if arbitrary or manifestly illegal (R 10/11), thereby involving a fundamental violation of the right to be heard (R 9/11; see also R 17/11).

In R 13/12 the Enlarged Board stated that it had to remain vigilant and thwart any attempt to blur the frontier between what might clearly be a matter for a violation of the right to be heard under Art. 113 and 112a(2)(c) EPC, and anything else presented as a violation of the right to be heard but which actually pertained to the substantive merits of the decision under review.

In R 3/18 the Enlarged Board noted that the question at issue, i.e. the "estoppel situation" as characterised by the petitioner, might, in principle be eligible for a referral to the Enlarged Board under Art. 112 EPC. However, the Enlarged Board held that an absence of such a referral under Art. 112 EPC did not entitle the Enlarged Board in proceedings under Art. 112a EPC to deal with the petitioner's request to correct this estoppel situation and to set aside the decision under review.